

U.P. Board of Secondary Sanskrit Education (Appointment and Conditions of Service of Heads of Institution, Teachers and other employees of the Institutions Rules, 2009

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U.P. Board of Secondary Sanskrit Education (Appointment and Conditions of Service of Heads of Institution, Teachers and other employees of the Institutions Rules, 2009

UTTAR PRADESH

India

U.P. Board of Secondary Sanskrit Education (Appointment and Conditions of Service of Heads of Institution, Teachers and other employees of the Institutions Rules, 2009

Rule

U-P-BOARD-OF-SECONDARY-SANSKRIT-EDUCATION-APPOINTMENT-AND-CONDITIONS-OF-SERVICE-OF-HEADS-OF-INSTITUTION-TEACHERS-AND-OTHER-EMPLOYEES-OF-THE-INSTITUTIONS-RULES-2009 of 2009

Published on 15 January 2010

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U.P. Board of Secondary Sanskrit Education (Appointment and Conditions of Service of Heads of Institution, Teachers and other employees of the Institutions Rules, 2009

Published vide Notification No. 412-S/15/9-09-25(35)-04, dated 15 January, 2010, U.P. Gazette Extraordinary, Part-4,

Section (kha), dated 15th January, 2010

The following regulations which the Uttar Pradesh Board of Secondary Sanskrit Education has made in exercise of the powers under Section 21 read with Section 25 and Section 26 of the Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000 (U.P. Act

No. 32 of 2000

) after obtaining the previous approval of the State Government with a view to regulating the appointment and conditions of service of Heads of Institution, teachers and other employees of the institutions are hereby published as required under sub-section (1) of Section 22 of the said Act.

Chapter 1

Preliminary

1.

Short title and commencement.

(1)

These regulations may be called the Uttar Pradesh Board of Secondary Sanskrit Education (Appointment and Conditions of Service of Heads of Institution, Teachers and Other Employees of the Institutions) Regulations, 2009.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

Chapter 2

Appointment of Heads of Institutions and Teachers

2.

The minimum qualifications for appointment as Head of Institution and Teachers in any recognized institution, whether by direct recruitment or otherwise, shall be as given in Appendix 'A'.

3.

(1)

The post of a Head of Institution shall be filled in accordance with the procedure laid down in Regulation 9:

Provided that in the case of any institution a temporary vacancy caused by the grant of leave to an incumbent for a period not exceeding six months or by death, retirement or suspension of an incumbent occurring during an educational session for the post of the Head of Institution shall be filled by the promotion of the seniormost qualified teacher, if any, in the highest grade in the institution.

(2)

(a)

Where an institution is raised from a Prathama to a Purva Madhyama or from a Purva Madhyama to a Uttar Madhyama, the post of Head of Institution shall be filled by promotion of the head master of Prathama or Purva Madhyama, as the case may be, if such head master possesses a good record of service and minimum qualifications prescribed for appointment to the post of Head for Puna Madhyama or Uttar Madhyama.

(b)

The Committee of Management of such institution shall submit the proposal for promotion of the Head Master or Principal to the Regional Joint Director of Education through District Inspector of Schools for his concurrence.

(c)

The proposal referred to in Clause (b) shall be accompanied by a copy of the resolution of the Committee of Management approving such head master for promotion, his service book and Character Roll and shall contain the following particulars in relation to him, namely-

(i)

Date of birth;

(ii)

Examination passed by him stating the subjects, divisions and year of passing such examinations.

(d)

The Regional Joint Director of Education shall communicate his decision on such proposal within two weeks from the date of receipt thereof, failing which the Regional Joint Director of Education shall be deemed to have given his concurrence to such proposal.

(e)

The decision of the Regional Joint Director of Education under Clause (d) shall be communicated to the Committee of Management and the headmaster concerned.

(f)

Any person aggrieved from the decision of the Regional Joint Director of Education under Clause (e) including the Committee of Management may make a representation against it to the Director of Education (Secondary), Uttar Pradesh within 10 days from the date-of commencement of the order. The decision of the Director of Education (Secondary), Uttar Pradesh shall be final.

(g)

A headmaster of Prathama or Purva Madhyama, as the case may be is not found fit for promotion as headmaster or Principal of the upgraded institution shall be retained as an assistant teacher on the highest post for which he is qualified, provided that his pay-scale shall not be reduced.

(3)

Where the temporary vacancy in the post of the Head of institution is for a period not exceeding six months, the seniormost teacher in the highest grade may be allowed to work as acting Head of institution, but he shall not be entitled to pay in a scale higher than the scale of pay in which he drawing as such teacher.

(4)

In all cases in which promotion are made under this regulation a copy of the resolution of the Committee of Management together with particulars in the pro-forma prescribed in Appendix 'B' shall be immediately forwarded by the Manager to District Inspector of Schools to forward it to the Regional Joint Director of Education to approve it.

4.

(1)

The Committee of Management of every institution shall cause a seniority list of teachers to be prepared in accordance with the following provision.

(a)

The seniority list shall be prepared separately for each grade of teachers whether permanent or temporary, on any substantive post;

(b)

Seniority of teachers in a grade shall be determined on the basis of their substantive appointment in that grade. If two or more teachers were so appointed on the same date, seniority shall be determined on the basis of age;

(c)

Where two or more teachers working in a grade are promoted to the next higher grade on the same date, their seniority inter se shall be determined on the basis of the length of their service to be reckoned on the date of their substantive appointment in the grade from which they are promoted:

Provided that if such length of service is equal, seniority shall be determined on the basis of age.

(d)

A teacher in a higher grade shall be deemed to be senior to a teacher in the lower grade irrespective of the length of service;

(e)

If a teacher who is placed under suspension is reinstated on his original post, his original seniority in the grade shall not be affected;

(f)

Every dispute about the seniority of the teacher shall be referred to the Committee of Management which shall decide the same giving reasons for the decisions;

(g)

Any teacher aggrieved from the decision of the Committee of Management under sub-clause if) may prefer an appeal to the Regional Deputy Inspector of Sanskrit Schools within 15 days of the receipt of the decision who shall forward the same to the Deputy Director of Education (Sanskrit) with his recommendation. Decision of Deputy Director of Education (Sanskrit) shall be final.

(2)

The seniority list shall be revised every year and the provisions of sub-regulation (1) shall mutatis mutandis apply to such revision.

5.

Where any Prathama School is recognised as a Purva Madhyama under Section 11, a permanent or temporary teacher of such school, possessing the minimum qualifications mentioned under Regulation 2, shall be deemed to be a permanent or a temporary teacher, as the case may be, of such Purva Madhyama, provided that the sendees of a temporary teacher who is not selected for appointment in accordance with the provisions of the Act and these regulations shall be dispensed with after giving him one month's notice in that behalf or one month's pay in lieu of such notice.

6.

(1)

Every vacancy for the post of teacher in a recognized institution shall except as otherwise provided in sub-regulation (2), be filled by direct recruitment.

(2)

(a)

Fifty per cent of the total number of the sanctioned posts in lecturer's grade shall be reserved for promotion from amongst the teachers working in the institution in L.T. Grade and promotions shall be made subject to availability and eligibility of such teachers for promotion.

(b)

If more than fifty per cent of the total number of the sanctioned posts in the lecturer's grade have already been filled by promotion, the persons already promoted shall not be reverted.

(c)

In computing fifty per cent of the posts under Clause (a) fraction of less than one-half shall be ignored while fraction of one-half or more shall be reckoned as one.

7.

(1)

Where any vacancy in the lecturer's grade as determined under Regulation 6, is to be filled by promotion all teachers working in the L.T. Grade having a minimum of five years continuous substantive service to their credit on the date of occurrence of the vacancy shall be considered for promotion by the Committee of Management without their having to apply for the same provided they possess the prescribed minimum qualifications for teaching the subject in which the teacher in the lecturer's grade is required.

(2)

Selection for promotion to the next higher grade shall be made on the basis of service-standing, achievements in service, academic qualifications and integrity.

(3)

Subject to sub-regulation (2) where more than one teacher in the L.T. Grade are eligible for promotion to the post of Lecturer in any subject preference will be given to the teacher who is the seniormost amongst them in service in that grade.

(4)

(a)

The claim of any teacher who is eligible for promotion shall not be ignored merely because he has proceeded on long leave or is officiating or working temporarily on a post in the higher grade.

(b)

In the case of a teacher who is under suspension, the claim for promotion shall not be ignored if he is reinstated prior to the selection for promotion.

(5)

In respect of any teacher selected for appointment by promotion in accordance with these regulations, the Manager of the institution shall, within a week from the date of the resolution passed by the Committee of Management in regard to such appointment forward to the District Inspector of Schools with a copy of such resolution and a statement showing the following particulars-

(i)

the total number of sanctioned posts in the grade in which promotion is to be made;

(ii)

the number of posts to be reserved for promotion;

(iii)

the number of posts already filled by promotion giving names of the incumbents;

(iv)

the total number of vacancies which have occurred;

(v)

the number of vacancies determined by the Committee of Management to be filled by-

(a)

promotion

(b)

direct recruitment;

(vi)

the names of all eligible candidates for promotion, their qualifications and the length of their service from the date of their substantive appointment in the grade from which they are to be promoted; and

(vii)

names of persons selected for promotion.

(6)

On receipt of the resolution referred to sub-regulation (5), District Inspector of Schools shall send the same with his recommendation to Regional Joint Director of Education within one week. The Regional Joint Director of Education shall communicate his decision within one week to District Inspector of Schools who shall approve the promotion within the period of one week.

(7)

Where the Committee of Management feels aggrieved from the decision of the Inspector under sub-regulation (6), it may within two weeks from the date of communication of such decision to the Manager, make a representation against it to the Director of Education (Secondary), Uttar Pradesh whose decision in the matter shall be final.

8.

(1)

Where a vacancy for the post of teacher is caused by grant of leave to him for a period exceeding six months or where a teacher is placed under suspension which has been approved in writing by the Regional Joint Director of Education under subsection (6) of Section 26 of Uttar Pradesh Board of Secondary Sanskrit Education Act, 2000 and the period of such suspension is likely to exceed six months from the date of such approval, the vacancy may be filled by promotion under in accordance with provision of Regulation 9.

(2)

Where any vacancy under sub-regulation (1) is caused as a result of promotion under Regulation 3 and the period of such vacancy exceeds thirty days but does not exceed six months, it may be filled by the Committee of Management by promotion of a duly qualified permanent teacher of the institution in the next lower grade on the basis of seniority.

(3)

If any vacancy under Clause (2) cannot be filled due to the non-availability of any teacher of the institution in the next lower grade, possessing the prescribed minimum qualifications for the post, it may be filled on ad hoc basis by the Committee of Management by direct appointment for a period not exceeding six months in the aggregate.

(4)

All vacancies filled under sub-regulation (2) or sub-regulation (3) shall be reported to the Regional Joint Director of Education in the pro-forma prescribed in Appendix 'B' within a week of being filled up.

9.

The procedure for filling up the vacancy of the Head of Institution and teachers by direct recruitment in any recognized institution shall be as follow-

(a)

[After the Committee of Management has determined the number of vacancies to be filled by direct recruitment, it shall send for prior approval the proposal of recruitment to Regional Deputy Inspector of Sanskrit Schools including -
[Substituted by Notification No. 327/XV-9-18-25(35)/04 T.C., dated 13.3.2018 (w.e.f 15.1.2010).]

(i)

total number of sanctioned posts to which appointment is to be made;

(ii)

number vacancies that have been kept for reservation;

(iii)

number vacancies unreserved;

(iv)

statement of teachers (gradewise).

(b)

On the receipt of proposal under clause (a), Regional Deputy Inspector of Sanskrit Schools after the determination of working strength in the institution shall send his recommendation to the Uttar Pradesh Secondary Education Service Selection Board for selection.

(c)

Management shall determine the number of basic vacant post of Heads and Teachers in Prathma, Purv Madhyama and Uttar Madhyama schools which are aided by the Uttar Pradesh Board of Secondary Sanskrit Education and requisition of such vacant post shall be sent to Uttar Pradesh Secondary Education Service Selection Board by Regional Deputy Inspector of Sanskrit Schools.

Uttar Pradesh Secondary Education Service Selection Board, Allahabad shall advertise the requisitioned posts of recruitment for written examination in the advertisement, for the post of head/teacher of the institution, the name and place of the institution shall also be mentioned and the candidate shall be required to give the choice of the maximum three institution in the order of preference and if he wishes to be considered for any particular institute or institutions and for no other institution, he may mention the fact in his application.

The amount of fee as decided by the government for different categories of candidates in the manner prescribed by the government.

The Board shall prepare a list for each category of post, in the sequence of most suitable obtained marks. If the total awarded to two or more candidate are equal then the seniormost in age shall be preferred.

Where a selected candidate cannot be allocated any of the institutions of his preference on the ground that the candidate placed higher in the list have already been allocated such institutions and there remains no vacancy in them, the Board may allocate any institution to him as it may deem fit.

The Board shall forward the list along with the name of the Institution allocated to selected candidates to the Regional Deputy Inspector of Sanskrit Schools with a copy thereof to the Regional Joint Director Education and it shall be notified on the notice board.

According to recommendation of Uttar Pradesh Secondary Education Service Selection Board, Allahabad the selected candidates will be appointed by the Appointing Authority.]

[10 to 13.

[Omitted by Notification No. 327/XV-9-18-25(35)/04 T.C., dated 13.3.2018 (w.e.f 15.1.2010).]

***]

10.All applications, papers and registers relating to selection shall be preserved by the Regional Deputy Inspector of Schools till such period as may be prescribed by the Director and shall be furnished to the District Inspector of Schools, Regional Joint Director of Education or the Director of Education (Secondary), Uttar Pradesh as and when the same may be summoned.

11.The Regional Joint Director of Education may fix one or more selection of one or more institution at such place, time and date as may be found convenient.

12.The Director of Education (Secondary). Uttar Pradesh shall nominate Experts for each region separately for the selection of Heads of Institutions and for the teachers, after obtaining their consent in writing to act as an Expert.

13.Every expert attending a meeting of the Selection Committee and every person engaged for awarding quality-point-marks shall be entitled to be paid remuneration at such rates as may be sanctioned by the State Government from time to time. In addition, the experts shall be paid travelling allowance at such rate as may be sanctioned by the State Government.

14.

[

[Substituted by Notification No. 327/XV-9-18-25(35)/04 T.C., dated 13.3.2018 (w.e.f 15.1.2010).]

Within fifteen days of the receipt of the recommendation of the Uttar Pradesh Secondary Education Service Selection Board and the approval of authority specified therein, the manager shall on authorisation under resolution of the Committee of Management issue an order of appointment by registered post to the candidate in the Form given in Appendix 'E' requiring the candidate to join duty within thirty days of the receipt of such order failing which the appointment of the candidate will be liable to cancellation. A copy of the same shall be sent to the Regional Inspector of Sanskrit School, District Inspector of School, and Regional Joint Director of Education. District Inspector of School may approved the appointment made in the manner as mentioned above.]

15.

If the Director of Education (Secondary), Uttar Pradesh is satisfied that the proceedings of the selection have been vitiated, he shall declare the proceedings of the selection null and void and shall pass orders for holding of selection again in such cases. The orders of the Director in this regard shall be final and binding on all concerned.

Chapter 3

Appointment of Other Employees

16.

There shall be created one post of Group C employee and one and post of Group D employee in every Sanskrit Institute in the State. The salary of such employee shall be such as may be determined by the State Government from time to time.

17.

The appointment of Croup C employee shall be made by the Committee of Management and the appointment of the Group D employee by the head of the institution on the prior approval, of District Inspector of Schools.

18.

(1)

The appointment to Croup C post shall be made on the recommendation of the Selection Committee consisting of. The advertisement shall be made in at least two newspapers (One state widely circulated and other locally published one) and names of the candidates shall also be obtained from District Employment Office-

(i)

President of the Committee of Management or any other member nominated by the Committee of Management shall be the Chairman of the Selection Committee;

(ii)

Head of the Institution;

(iii)

District Inspector of Schools or any Officer nominated by him;

(iv)

District Employment Officer or any other Officer nominated by him.

(2)

The vacancy of such post shall be advertised and shall be published in at last two newspapers having circulation in the area.

19.

For the appointment of the post of Group D employee, the names of the candidates shall be obtained from District Employment Officer with the approval of District Inspector of Schools.

20.

Qualifications for the appointment to a Group C post shall be graduation from a university recognised by law and for Group D post shall be High School.

21.

The candidates for appointment to a Group C post and Group D post, shall not be less than 18 years and not more than 35 years of age. The relaxation in age shall be in accordance with the law for the time being in force.

Chapter 4

Conditions of Service of Heads of Institutions, Teachers and other Employee Appointment, Probation and Confirmation

22.

The head of the institution and teacher.

- The Committee of Management shall fill substantively by the 31st of July following any clear vacancy of the head of the

institution or the teacher occurring before July 1 of a calendar year. A vacancy likely to occur by August 1 should likewise be filled by 31st August.

23.

(1)

For the appointment of Group C and Group D employees, the minimum qualifications shall be such as prescribed in these regulations:

Provided that a Group D employee who has completed 10 years of service shall be relaxed for the promotion for the Group C post but in no case no Group D employee shall get promotion unless he has passed intermediate examination.

(2)

Fifty per cent of the sanctioned post of head clerk and routine grade clerks shall be filled by promotion of regularly appointed Group D employees who have completed 5 years continuous service provided his service record shall be satisfactory and who possess the qualifications prescribed under these rules for the appointment of Group C posts. In case any employee is aggrieved by the decision of the Committee of Management, he may file an appeal within two weeks from the receipt of the same to the Regional Deputy Inspector Sanskrit Schools, whose decision shall be final and can be implemented by the Committee of Management.

24.

No person shall be appointed without the prior approval of the Director of Education (Secondary), Uttar Pradesh in case he is a dismissed head of the institution or teacher from a recognised educational institution or the institution owned by the State Government.

25.

No member of the teaching staff or head of the institution shall act as an office-bearer of the Committee of Management of any other recognised institution.

26.

All appointments shall be made subject to the selection by the Selection Committee and under formal orders or letters of appointment with the sanction of the appointing authority.

27.

A person selected for substantive appointment against a clear vacancy shall be placed on probation from the date of joining his duty.

28.

The period of probation for a head of institution or teacher whether appointed by direct recruitment or promotion shall be one year.

29.

A person placed on probation shall be confirmed if he has proved himself for the post for which he was recruited and his integrity is certified.

30.

Unless before the expiry of the period of probation, the service of head of the institution or teacher is terminated or action is taken to dismiss, discharge or remove him or reduce him in rank or under Regulation 31, he shall be confirmed on the post and in the grade at the end of his probation.

31.

The period of probation of head of the institution or teacher may be extended by a maximum period of 12 months.

32.

At least six weeks before the date on which the confirmation of a teacher is due, the head of the institution shall prepare his confirmation papers and send them along with his own remarks, copies of the teacher's character rolls and order of appointment to the manager who shall place them before the Committee of Management for its consideration, confirmation papers of the head of the institution shall like-wise be prepared by the manager and be placed before the Committee of Management. The decision of the Committee of Management shall in each case be recorded in the form of a resolution.

33.

A copy of the resolution of the Committee of Management confirming a person shall be stick to his service-book and proper entry shall be made in the same.

34.

Transfer of a head of the institution or teacher while on probation, from one institution to another, shall not constitute a break in his probation, and action for his confirmation shall be taken at the institution to which he has been transferred.

35.

[

[Rule 35 substituted by Notification No. 196 San/XV - 9-11-25(35)/04-T.C., dated 7 September, 2011. Published in U.P. Gazette Extra., Part-4, Section (kha), dated 7 September, 2011.]

The age of superannuation of Head, of Institution and teachers shall be 62 years and the age of superannuation of the other employees shall be 60 years. If the date of retirement of a head of the institution or teacher falls between 2nd July and 30th June, he shall be given automatic expansion or service till 30th June of the year unless he gives in writing the denial of the same.]

36.

Extension of service shall be granted in special circumstances that shall be determined by the State Government.

If the age of superannuation of a Group 'C' or Group 'D' employee falls between a month after the first date of the month, he shall continue till the end of the month and in the case of first date of month the last date of the previous month shall be his date of superannuation.

37.

Other employees of Group C and Group D Categories.

- In respect of the other employees of Group C and Group D Categories the appointment, probation (period of which will be one year) and filling of vacancy, appointment, probation and confirmation of such employees shall mutatis mutandis be governed by Regulations 22, 25 to 33.

Chapter 5

Termination of Service of any Head of Institution or Teacher

38.

The services of a teacher or head of Institution appointed as a temporary measure for definite period or in a leave vacancy or in a vacancy occurring for a part of the session shall, unless extended according to law, terminate on the expiry of the period for which he has been appointed or when the vacancy shall stand terminated, whichever is earlier and no prior notice shall be needed for such termination.

39.

(1)

The services of a permanent teacher or head of Institution may be terminated by giving him 3 months notice or 3 months salary in lieu thereof, on the ground of the abolition of the post which the teacher is holding. The abolition may be due to one of the following reason-

(a)

Retrenchment decided upon for reasons of financial stringency;

(b)

Abolition of a subject;

(c)

Abolition of section or class.

(2)

For the purpose of computing the period of notice mentioned in sub-regulation (1) or for determining amount to be paid in lieu of the period of summer vacation shall be excluded.

40.

The Committee of Management shall not propose to the District Inspector of Schools, the termination of sendees of a confirmed teacher or head of institution unless a resolution to this effect has been passed at its meeting specially convened for the purpose and by a two-third majority present and voting.

41.

On the above notice or salary in lieu of that, a teacher or head of Institution may submit his resignation.

42.

No teacher or head of Institution shall be allowed to resign if disciplinary proceedings are pending against him unless specifically permitted by the Committee of Management to do so.

Chapter 6

Punishment, Enquiry and Suspension

43.

(1)

Punishment of a teacher or head of Institution would require the prior approval of the Regional Joint Director of Education who may take any of the following form-

(a)

Dismissal

(b)

Removal or Discharge

(c)

Reduction in Rank

(d)

Diminution in emoluments

(2)

In case of Group D employees the head of the Institution shall be a competent authority for the punishment mentioned in sub-regulation (1). In case of punishment, an appeal may be preferred to the Committee of Management. The appeal shall be made to the Committee of Management within one month from the date of information of the punishment. The decision on the appeal should be made within six weeks from its filing. Keeping all the relevant records in view and providing an opportunity of personal hearing, if desired, the Committee of Management shall issue the order on the appeal.

(3)

It shall be the privilege of Group D employee to make an appeal against the decision of the Committee of Management to the Regional Deputy Inspector of Sanskrit Schools within one month from its communication:

Provided that in case of indecision on the part of Committee of Management within specified time limit of six weeks, the concerning employee may make a representation to the Regional Deputy Inspector of Sanskrit Schools.

(4)

The Regional Deputy Inspector of Sanskrit Schools, shall, consider the representation made under the proviso to sub-regulation (3) and pass the order within three months from the date of receipt of the representation. The decision of the Regional Deputy Inspector of Sanskrit Schools shall be final.

44.

(1)

A Group 'C' or Group 'D' employee may be dismissed from service on grounds such as gross subordination, deliberate or serious neglect to duty, gross misconduct or commission of an act which constitutes a criminal offence, dishonesty, corruption, misappropriation of funds, sex-perversity or moral turpitude.

(2)

A Group 'C' or Group 'D' employee may be dismissed from service on the ground mentioned in sub-regulation (1) as also on the grounds of inefficiency in administration or institutional work or unauthorised tuition or employment.

(3)

A Group 'C' or Group 'D' employee may be reduced in rank or subjected to diminution in emoluments such as deficiency in administration, unsatisfactory work or conduct, lack of interest in co-curricular activities or discharge of examination duties or doubtful integrity. Reduction may be to a lower scale or time-scale or to a lower stage in the time-scale.

45.

(1)

A Group 'C' or Group 'D' employee may also be punished by stoppage of increment in a time-scale for any period as a temporary or permanent measure.

(2)

An appeal against such an order shall lie to the Regional Deputy Inspector of Sanskrit Schools within 30 days of the communication of this order to the employee and decision of the Deputy Inspector of Sanskrit Schools shall be final.

46.

(1)

On receipt of a complaint or an adverse reports of facts of a serious nature, the Committee of Management may in the

cases of teachers appoint the Head of the Institution or the Manager as the Enquiry Officer (or the manager may himself setup the enquiry if such power has been delegated to him by the Committee of Management under rules), and in the case of the head of the institution a small sub-committee shall be constituted with instructions to submit the report as expeditiously as possible.

In case of Group C employees, the head of the institution shall appoint a senior teacher as an enquiry officer.

(2)

The grounds on which it is proposed to take action shall be reduced in the form of a definite charge or charges which shall be communicated to the employee charged and which shall be so clear and precise as to give sufficient indication to the charged employee of the facts and circumstances against him. He shall be required within three weeks of the receipt of the charge-sheet to put in a written statement of his defence and to state whether he desires to be heard in person. If he or the enquiring authority so desires, an oral enquiry shall be held in respect of such of the allegations as are not admitted. At that enquiry such oral evidence shall be heard as that enquiring authority considers necessary.

The person charged shall be entitled to cross-examine the witnesses, to give evidence in person and to have such witnesses called as he may wish: provided that the enquiring authority conducting the enquiry may, for sufficient reasons to be recorded in writing, refuse to call a witness the proceedings shall contain a sufficient record of the evidence and statement of the findings and the grounds thereof. The enquiring authority conducting the enquiry may also, separately from these proceedings make his own recommendation regarding the punishment to be imposed on such employee.

(3)

Sub-regulation (2) shall not apply where the person concerned has absconded, or where it is for other reasons impracticable to communicate him.

(4)

All or any of the provisions of sub-regulation (1) may for sufficient reasons to be recorded in writing be waived where there is difficulty in observing exactly the requirement thereof and those requirements can in the opinion of the enquiring authority be waived without injustice to the person charged.

47.

Soon after the report of the proceedings and recommendations of the enquiring authority are received the Committee of Management after notice to employee meet to consider the report of the proceedings and recommendation made and take decision in the case. The employee shall be allowed, if he so desires, to appear before the Committee of Management in person to State his case and answer any question that may be put to him by any member present at the meeting. The Committee of Management shall then send a complete report together with all connected papers to the Regional Deputy Inspector of Sanskrit Schools for action proposed by it.

48.

The report regarding the suspension of the head of the institution or of the teacher under Regulation 47 to be submitted to the Regional Joint Director of Education shall contain the following particulars and be accompanied by the following document-

(a)

The name of the person suspended along with particulars of the posts (including grades) held by him since the date of his original appointment till the time of suspension including particulars as to the nature of tenure held at the time of suspension i.e. temporary, permanent or officiating;

(b)

a certified copy of the report on the basis of which such person was last confirmed or allowed to cross efficiency bar, whichever is later;

(c)

details of all the charges on the basis of which such person was suspended;

(d)

certified copy of the complaints, reports and enquiry reports, if any, of the Enquiring Officer on the basis of which such person was suspended;

(e)

certified copy of the resolution of the Committee of Management suspending such person;

(f)

certified copy of the order of suspension issued to such person;

(g)

in case such person was suspended previously also, details of the charges on which and the period for which he was suspended on previous occasion accompanied by certified copies of the orders on the basis of which he was reinstated.

49.

(1)

The charge or charges should ordinarily be handed over to employee within 15 days from the date of taking the decision to start formal proceeding.

(2)

The employee should ordinarily be required to submit his written statement of defence within a period of 3 weeks and in no case should a period of more than a month be allowed for the purpose.

(3)

The enquiry, including oral examination of the witness, should ordinarily be completed within a month of the submission of the written statement.

(4)

The report of the enquiring agency where he is not himself the punishing authority should be submitted as expeditiously as possible and ordinarily within a fortnight of the closing of enquiry.

(5)

The punishing authority shall take decision without undue delay.

50.

The employee, under suspension shall be paid a subsistence allowance of an amount equal to half his pay.

51.

A suspended employee if reinstated, shall be paid the difference between his salary and subsistence allowance already received by him.

52.

A suspended employee may in the discretion of the punishing authority, be punished with effect from the date of suspension or any other date.

53.

The Regional Joint Director of Education shall communicate decision thereof to the management within six weeks of receipt of its proposal in complete form for action mentioned in sub-sections (3), (4), (5) and (6) of Section 26 of the Act. If incomplete papers are received from the Manager, the approving officer shall require it to resubmit its original incomplete form within two weeks and the period of six weeks prescribed in this regulation shall be reckoned from the date on which complete papers are received by the approving officer. These papers shall either be sent by registered post or by the special messenger.

54.

Under the provisions laid down in Clause (b) of sub-section (3) (b) of Section 26 of the Act, any party being aggrieved of the decision of the Regional. Joint Director of Education may make an appeal within one month from the date of the receipt of the same through the Inspector Sanskrit Schools, Uttar Pradesh to the Director Education (Secondary), Uttar Pradesh. The Inspector Sanskrit Schools may make necessary inquiry and submit his recommendation on the appeal to the Director of Education (Secondary), Uttar Pradesh who may approve action taken or cancel or modify the same. The decision of the Director of Education (Secondary), Uttar Pradesh shall be final.

55.

In reference to Group C employees of the institution, the Deputy Inspector Sanskrit Schools can approve or reject the proposed punishment or diminish or enhance the same:

Provided that in reference to the matter of punishment the Deputy Director of Education (Sanskrit) shall provide an opportunity to the concerning employee who may explain the reasons within 15 days from the receipt of the notice.

56.

Any party under the provisions laid down in Regulation 55, may appeal to the Regional Joint Director of Education within one month from the receipt of the information and the Regional Joint Director of Education after enquiry, that is necessary, shall approve the order or cancel or modify the same. That will be final one. The Regional Joint Director of Education shall pass an order on appeal within three months.

Chapter 7

Scale of Pay and Payment of Salaries

57.

A teacher or Head of Institution or other employee shall be allowed the scale of pay sanctioned by State Government from time to time.

58.

The pay of a head of Institution, teacher or other employee on his first joining service in an institution shall be fixed at the initial stage of the time-scale attaching to his post:

Provided that if he has served previously in another institution and earned increments, he may be given the benefit of such increments under conditions laid down by the State Government or in these regulations:

Provided further that advanced increment may be allowed in special cases with the prior approval of State Government.

59.

Any promotion to a higher post the initial pay of an employee will be fixed at the minimum of the new scale if his pay is less than his minimum otherwise at the stage of the new time-scale next above his pay.

60.

The Committee of Management will pay the salary of a Head of Institution or teacher or other employee for a month by 20th day of the month next following calendar month.

61.

The payment of salary' will be made through account that wall be opened in any nationalized bank.

62.

Continuous service rendered in officiating or substantive capacity in an institution shall count for annual increment in the time-scale of pay.

63.

Annual increment in time-scale of pay will be admissible to a Head of Institution, teacher or other employee unless punishment is imposed upon him stopping his increment or he is detained at the efficiency bar.

64.

No head of the institution shall be allowed to cross the efficiency bar unless he has proved to be an able guide and efficient supervisor of the students and teachers and has built up the right tone in the institution, achieved satisfactory academic standard, organized co-curricular activities satisfactorily kept himself abreast of progressive educational thought, development and his integrity is certified.

65.

No teacher shall be allowed to cross the efficiency bar unless he has proved himself a competent teacher, exercises a healthy influence on the students, co-operates in maintenance of discipline and in co-curricular activities, remains loyal to the institution and his integrity is certified.

66.

If the efficiency bar of a Head of the Institution, teacher is not crossed under Regulation 64 or 65 he may submit an appeal to the Regional Joint Director of Education within two weeks from the receipt of the information of the same. The Regional Joint Director of Education after due inquiry, if necessary, may pass an appropriate order that shall be final and to be implemented by the Committee of Management.

Chapter 8

Transfer From One Institution To Another

67.

A Head of Institution or a permanent teacher or any other employee of an institution other than minority institution, desiring his transfer to another institution may make an application for the purpose through the Head of the Institution and the manager of the institution to the Regional Deputy Inspector Sanskrit Schools with the proposal of the Committee of Management. The application besides other particulars of the applicant shall contain the names of institutions, places and the district to which the transfer is desired.

68.

Application received by the Regional Deputy Inspector Sanskrit Schools under the provisions made in Regulation 67 shall be forwarded by him/her to the manager of the institution where the transfer is desired and the concerning manager of the institution with the proposal of the Committee of Management shall send his/her recommendations. On that the Regional Deputy Inspector Sanskrit Schools shall forward the papers with recommendations to the Regional

Joint Director of Education for the order of transfer who shall pass the appropriate order.

69.

The Deputy Inspector of Sanskrit Schools and the Regional Joint Director of Education shall maintain a register of applications for transfer received by them under Regulations 67 and 68.

70.

In case a Head of the Institution or a teacher desires transfer from the region to another under the provisions laid down in the Regulations 67 and 68, the Regional Joint Director of Education shall send the papers of transfer to the Director of Education (Secondary), Uttar Pradesh through the Inspector Sanskrit Schools, Uttar Pradesh. The decision of the Director of Education (Secondary) shall be final:

Provided that if a Head of the Institution or a teacher desires transfer from one region to another, the Regional Joint Director of Education shall send the papers to the Director of Education (Secondary), Uttar Pradesh with recommendations and the proposal of the Committee of Management where transfer is desired.

71.

No person employed in a recognized institution shall be transferred from that institution to any other institution unless-

(a)

the Committee of Management for each such institution by means of a resolution duly passed in that behalf concur in such transfer;

(b)

The permission in Writing is necessary before giving effect to such transfer.

72.

Transfer made under the provisions laid down in Regulations 68, 69 and 70, the manager of the former institution shall send to the manager of the latter institution the employees's service book, character roll, leave account, provident fund account and other relevant records duly posted up to date:

Provided that all the relevant documents shall be sent to another institution within one month after the counter signature of the District Inspector of Schools.

73.

(1)

A Head of Institution or teacher or other employee shall not be entitled to allowance on transfer.

(2)

He will be permitted journey time at the rate of one day every 100 kms. or part thereof subject to a maximum of three days.

(3)

The salary' of the Head of Institution, teacher or other employee shall be paid by the institution where he joins on transfer.

(4)

The Head of Institution or teacher or other employee transferred to the new institution shall have his name included at the bottom of the seniority list of the Head of Institution or teacher or other employee of his grade i.e. he will lose his seniority.

Chapter 9

Maintenance of Record of Work and Service

74.

A character role and service-book shall be maintained for every Head of Institution or teacher or other employee.

75.

Yearly entries on teacher's work and conduct shall be made in his character-roll by the Head of the Institution and shall be seconded by the manager of the institution. In respect of the Head of the Institution such entries shall be made by the Manager.

76.

In case where an adverse entry is made in the character roll of a Head of Institution or teacher or other employee in a particular year, it shall be communicated to him within 30 days of the making of such entry and an acknowledgement obtained. Information about the withholding of integrity certificate shall be communicated likewise.

77.

A representation against an adverse entry in the character-roll may be made to the Committee of Management whose decision thereon shall be final.

78.

Service book in the Form prescribed by the State Government for its employees will be supplied to a Head of Institution or teacher or other employee of the institution at his own cost on his first appointment and along with the character roll shall be maintained by and kept in the custody of the Head of the Institution in the case of a teacher and by the Manager in the case of Head of the Institution.

79.

A Head of Institution or teacher or other employee of the institution shall be allowed to examine his service book at any time as he desires to satisfy himself that it is being properly maintained.

80.

A teacher or An employee will sign against his entry in his service book regarding annual increment, promotion and transfer and any interruption in service will be noted with full details of its duration. All entries in the service book shall be attested by the Head of Institution in the case of teacher or an employee and by the manager in the case of the Head of the Institution. The casual leave, earned leave, medical leave, maternity leave, leave on personal affair and extraordinary leave shall be sanctioned by the authority and the extent that are applicable to the teacher or an employee in the Government higher secondary schools.

Appendix A'

(In reference to Regulation 2 of Chapter 2)

Qualifications for the appointment of Head of the Institutions and teachers

Sl.No.

Name of the post

Educational qualifications

Training

Experience

Age

Preferential Qualifications

1.

Principal/Headmasters (U.M./P/M.) Prathama

At least second class Postgraduate Degree

(Acharya) in subjects with Sanskrit as a main subject

Shiksha Shastri/B.Ed.

At least 3 years, of teaching experience in

Sanskrit subjects

Min. 30 years

Preference to lineal degree

2.

Astrology teacher (U.M.)

At least second-class Postgraduate Degree

(Acharya) in the subject concerned

Trained and lineal degree preferred

3.

Astrology teacher (P.M.)

At least graduate degree (Shastri in the

subject concerned

Shiksha Shastri/B.Ed.

Lineal degree preferred

4.

Astrology teacher Prathama Vidyalaya

Do

Do

Do

5.

Philosophy teacher (U.M)

At least a second class Postgraduate (Acharya)

degree in the related concerned

Training and lineal degree preferred

6.

Philosophy teacher (P.M)

At least a second-class graduate (Shastri)

degree

Shiksha Shastri/B.Ed.

lineal degree preferred

7.

Astrology Teacher

Do

Do

Do

8.

Grammar Teacher (U.M.)

At least second-class Postgraduate (Acharya)

Degree in related subject

9.

Grammar teacher (P.M.)/ Prathama

At least second-class Postgraduate (Shastri)

Degree in related subject

Shiksha Shastri/B.Ed.

Do

10.

Ved teacher (U.M.)

At least second-class Postgraduate degree

(Acharya) in the related subject

Shiksha Shastri/B.Ed.

At least 3 years of teaching experience in

Sanskrit as a subject

Min age 30 years

Lineal degree preferred

11.

Ved teacher (P.M.)/Prathama

At least second-class graduate (Shastri) degree

Shiksha Shastri/B.Ed.

Do

12.

Literature teacher (U.M.)

In related Subject at least second class

Acharya (Post-graduate degree in related Subject)

13.

Literature teacher (P.M./ Prathama)

At least second class graduate (Acharya) degree

in related subject

Shiksha Shastri B.Ed.

Do

14.

Hindi teacher (U.M.)

At least second class Postgraduate degree in the related subject and B.A. with Sanskrit or Shastri

15.

Hindi teacher (P.M.)/Prathama

At least second class B.A. in the subject concerned

Shiksha Shastri B.Ed.

16.

Maths teacher (U.M.)

At least a second class Postgraduate degree in the related subject

17.

Maths teacher (P.M.)/Prathama

At least second class graduate degree in the subject concerned

Shiksha Shastri B.Ed.

18.

Home Science/Home Economics teacher (U.M.)

At least a second class Postgraduate degree in the subject concerned

19.

Home Science/Home Economics teachers (P.M.)/Prathama

At least second class graduate degree in related subject

Shiksha Shastri B.Ed.

20.

Social subject teacher (P.M.)

At least a second class Postgraduate degree in the subject concerned

21.

Sociology subject teacher (P.M.)/ Prathama

At least a second class graduate degree in the subject concerned

Shiksha Shastri B.Ed.

22.

English teacher (U.M.)

At least a second class Postgraduate degree in the subject concerned

23.

English teacher (P.M.)/ Prathama

At least a second class graduate degree in the subject concerned

24.

Science teacher (U.M.)

At least second class Postgraduate degree in subject concerned

25.

Science teacher

At least a second class Postgraduate degree in subject concerned

26.

Music teacher (U.M.)

At least a second class Postgraduate degree in

subject concerned or Niprun examination of Bhathkhande

Vidyapeeth Iko or Praveen examination of Prayag Sangeet Samiti,

Prayag

27.

Music teacher (P.M.)/ Prathama

At Least a second class graduate degree in the

related subject or Sangeet Visharad examination of Bhatkhande

Vidyapeeth Iko. or Sangeet Prabhakar examination of Prayag

Samiti, Allahabad

Shiksha Shastri/B.Ed.

28.

Painting and commercial arts teacher

B.A. in drawing and painting or Art master

training certificate of kala aur Shilp vidyalaya, Lucknow

Shiksha Shastri B.Ed. or Equivalen training

29.

Painting and commercial arts teacher

(P.M.)/Prathama

Art master training certificate of Rajkiya Kala

aur Shilp Vidyalaya, Lucknow or Intermediate from U.P.M.S.F

along with technical arts or B.A. in drawing or painting or

equivalent examination recognized by the State Government

Trained

30.

Karmkand teacher (U.M.)

At least a second class Postgraduate (Acharya)

degree in subject concerned

31.

Karmkand teacher (P.M.)

At least a second class Shastri (Graduate)

degree in subject related

Shiksha Shastri/ B.Ed.

32.

Law teacher (U.M.)

At least second class post-graduate (Acharya)

degree in subject concerned

33.

Law teacher (P.M.)/ Prathama

At least a second class Shastri (graduate)

degree in subject related

Shiksha Shastri/ B.Ed.

34.

Yoga teacher (U.M.)

At least second class post-graduate (Acharya)

degree in subject concerned

35.

Yoga teacher (P.M.)/ Prathama

At least a second class Shastri (graduate)

degree in subject related

Shiksha Shastri/ B.Ed.

36.

Ayurvedach arya (U.M.)

At least second class postgraduate (Achaiya) in

subject concerned

37.

Ayurvedach arya (P.M.), Prathama

At least a second class Shastri (Graduate)

degree in subject related

Shiksha Shastri/ B.Ed.

38.

Economics teacher (U.M.)

At least Second class postgraduate degree in

subject concerned or M.Com and B.Com. With economics

Trained

39.

Economics teacher (P.M.)

At least a second class Shastri (graduate

degree in subject related)

Shiksha Shastri B.Ed.

40.

History teacher (U.M.)

At least second class post-graduate degree in

subject concerned

Trained

41.

History teacher (P.M.)/ Prathama

At least a second class shastri (graduate)

degree in subject related

Shiksha Shastri B.Ed.

42.

Civics teacher (U.M.)

At least second class post-graduate degree in

subject related

Trained

43.

Civics teacher (P.M.)/At least a second class

Shastri (Graduate) degree in subject related

Shiksha Shastri B.Ed.

44.

Geography teacher (U.M.)

At least second class post-graduate degree in

subject related

Trained

45.

Geography teacher (P.M.)/ Prathama

At least a second class shastri (graduate)

degree in subject related

Shiksha Shastri B.Ed.

46.

Psychology teacher (U.M.)

47.

Educations 1 science teacher (U.M.)

At least second-class Post-graduate degree in
subject related or M.Ed.

Trained

48.

Sociology teacher (U.M.)

At least second Class post-graduate degree in
subject related

Trained

49.

Commerce teacher (U.M.)

At least second-class Post-graduate degree in
subject related

50.

Commerce teacher (P.M.)/ Prathama

At least second class Shastri graduate degree
in subject related

Trained

51.

Knitting and cutting teacher (U.M.)

Knitting and cutting as qualification along
with I.T. or equivalent examination from Rajkiya Rachnatmak
Prashikshan

52.

Knitting and cutting teacher (P.M.)/Prathama

Do

Trained

53.

Training teacher (U.M.)

Intermediate in tailoring special qualification
in C.T. tailoring or equivalent

54.

Training teacher (P.M.)/Prathama

Intermediate in tailoring special qualification
in C.T. tailoring equivalent examination

55.

Bengali teacher (U.M.)

Post-graduate in Bengali as a subject

Trained

56.

Bengali teacher (P.M.) Prathama

Graduate in Bengali as a subject

Trained

57.

Punjabi teacher (U.M.) Prathama

Post graduate in Punjabi as a subject

Trained

58.

Punjabi teacher (P.M)/ Prathama

Graduate in Punjabi as a subject

Trained

59.

Urdu teacher (U.M.)

Post-graduate degree in Urdu as a subject

Trained

60.

Urdu teacher (P.M.)/Prathama

Graduate degree in Urdu as a subject

Trained

61.

Nepali teacher/(U.M.)

Post-graduate degree in Nepali as a subject

Trained

62.

Nepali teacher (P.M.)/Prathama

Graduate degree in Nepali as a subject

Trained

63.

Pali teacher (U.M.)

Post-graduate in Pali as a subject

Trained

64.

Pali teacher (P.M.)/Prathama

Graduate in Pali as a subject

Trained

Appendix-B

(In reference to Regulation 8(4) of Chapter 2)

A. Particulars of the person who last held the post-

(i)

Designation of the post

(ii)

Pay-scale

(iii)

Date of occurrence of vacancy and its cause

(iv)

Nature of the vacancy-leave, temporary or substantive (v) Qualifications prescribed for the post

(vi)

Name of the last incumbent with salary

(vii)

Remarks

B. Particulars of the person appointed-

(i)

Name

(ii)

Date of Birth

(iii)

Qualifications-examinations with date of passing them with subjects, divisions

(iv)

Position by seniority in the scale from which promoted

(v)

Period with dates for which appointment made

(vi)

Salary and scale pay allowed

(vii)

Remarks

Appendix-C

[In reference to Regulation 9(j) of Chapter 2]

Name of Institution.....

Description of the post for which interview held.....

Place of Interview.....Date of Interview.....

Sl. No.

Name of candidate with address

Whether Scheduled Caste or Scheduled Tribe

Date of Birth

1

2

3

4

Examination passed

Subjects

Year

Division

Post held

Scale of pay

Past experience

Name of Institution

Period From... To...

5

6

7

8

9

10

11

12

Other activities

Quality-point marks awarded

Observations of the Member of the Selection

Committee

Interview marks

13

14

15

16

Total of quality-point and interview marks

Whether member agrees to the selection (Say Yes
or No), if not, give reasons in brief

Remarks, if any

17

18

19

Certified that I have scrutinized all records pertaining to the selection in question and have, in particular examined that no candidate has been deprived due to legitimate claim to appear in the interview as per provisions of the Act and regulations thereto.

Signature.....

Name in full.....

Designation.....

Address.....

Appendix-D

[In reference to Regulation 9(h) of Chapter 2]

Quality-points scale for Head of Institution and teacher Quality-point marks for Head of an Institution

Maximum quality point marks for calling in interview

?

?

150

Maximum marks to be awarded in interview by the Selection

?

50

Committee

I

II

III

High School

?

?

10

7

4

Intermediate

?

?

20

15

8

Degree Examination

?

?

30

23

12

Post-Graduate Degree

?

?

40

30

16

Theory

Practice

Marks

Training

?
?
I
I
20
Degree/Diploma
?
?
I
II
18
II
I
16
II
II
12
II
III
10
III
II
10
Others
8
Teaching experience: 2 marks for every year with a maximum of
15
Administrative experience: 2 marks for every year with a
maximum of
15
Quality-point marks for Lectures
Maximum quality-point marks for calling for interview
150
Maximum marks for interview by the Selection
50
Committee
I
II
III
High School
?
?
10
7
4
Intermediate
?
?
20
15
8

Degree Examination

?

?

30

23

12

Post-graduate Degree

?

?

50

38

20

Theory

Practice

Marks

Training

I

I

10

I

II

9

II

I

8

II

II

6

II

111

III

11

5

Others

4

Teaching Experience: 2 marks for every year with a maximum of

15

Co-curricular activities:

15

Quality-point marks for L.T. Grade Teachers

Maximum quality-points marks for calling for interview

150

Maximum marks for interview by the Selection

50

Committee

I

II

III

High School

15

12

6

Intermediate

25

18

10

Graduate Degree

40

30

16

Post-graduate Degree

20

15

8

Training

Theory

Practice

Marks

I

I

20

I

II

18

II

I

16

II

II

12

II

III

III

II

10

Others

8

Teaching Experience: 2 marks for a
maximum of 15 Co-curricular activities

15

Details of award of quality-point marks for co-curricular
activities in all cases are as under

III. Co-curricular activities

(a)

Games/Sports

Active participation-

School Eleven

1

College

2

University

3

State

5

(b)

Scouting

II Class

1

I

3

President

5

N.C.C and/or P.S.D.

Corporal

1

Sergeant

2

Company Sergeant Major

3

Battalion Sergeant Major

4

Under Officer

5

(c)

Others-Proficiency, e.g. Debate, Dramatics, Union/ Parliament

School Level

1

College Level

2

University Level

3

State Level

5

N.B. - For calculation of quality-point marks Indian School Certificate will be considered equivalent to High School and P.U.C. equivalent to Intermediate.

Appendix-E

[In reference to Regulation 14 of Chapter 2]

(Under Regd. Cover)

No.....Dated.....

Name of Institution.....

Place.....

District.....

Subject-Appointment of Teacher/Head of Institution

Sir/Madam

I take pleasure in informing you that you have been selected for the post of.....by the Selection Committee. The Committee of Management of the institution, vide the resolution No.....dated....., has appointed you as a.....in the scale of Rs.....plus D.A. as admissible under rules, on one year's probation/temporally up to.....

You are called upon to report to the Head of the Institution/Manager within 10(ten) days of the receipt of this letter and join duty. In case you fail to join within the time specified above, this appointment will be liable to be cancelled.

Your Faithfully

Copy forwarded to the Regional Deputy Inspector of Sanskrit School/District Inspector of Schools..... of Education.....Regional Joint Director for information.

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Translation